

23PSCV01993 23PSCV01993

County: los-angeles

Division: Civil Law and Motion

Department: H

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Aguirre v. Yim, Case No. 23PSCV01993

ORDER ON

PETITIONS TO APPROVE MINOR'S COMPROMISE

For the reasons stated herein,
the Court is inclined to grant Petitioner Beatriz Andrade's Petitions to
Approve Minor's Compromise as to Nathaly Aguirre, Sarahi Aguirre, and Michael
Aguirre, contingent upon Petitioner addressing the deficiencies stated
herein by September 10, 2026. Petitioner is directed to file the requested supplemental
materials (i.e., proof of service, translation of retainer agreement, and signed
declaration re attorney's fees) by no later than September 10, 2026. The Court
sets a Non-Appearance Case Review for September 11, 2026 to track receipt of
those documents, at which point the Court will take the petitions under
submission.

Background

This

lawsuit concerns a motor vehicle collision that occurred between vehicles
operated by Miguel Aguirre and Fandar Yim on North Orange Grove Avenue in
Pomona, California on July 6, 2021; Miguel Aguirre passed away in January 2022.
Nathaly, Sarahi, and Michael Aguirre are Miguel Aguirre's surviving children.

The

parties have reached a settlement, and the minor children's mother and guardian
ad litem (Beatriz Andrade) now seeks court approval of the minor's compromises.

For the reasons stated herein, the Court intends to grant the petitioner, contingent upon Petitioner's counsel addressing the deficiencies raised herein. Petitioner's counsel is directed to file the requested supplemental materials by no later than September 10, 2026.

Legal
Standard

Court approval is required for all settlements of a minor's claim. (Prob. Code §§ 3500, 3600, et seq.; Code Civ. Proc., § 372.)

California Rules of Court, rule 7.950 provides that a petition "must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise . . ." (See Cal. Rules of Court, rule 7.950.) Rule 7.950 states that the Petition must be filed on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person With a Disability (form MC-350).

Discussion

Petitioner Beatriz Andrade ("Petitioner") seeks Court approval of settlements between Defendant Yim and each of her minor children. Petitioner is each minor child's parent and guardian ad litem.

The Court has reviewed the settlements and the requested attorney's fees and determines the settlements and requested fees are reasonable and appropriate. However, the Court observes the following deficiencies in the petitions:

1. No proof of service has been filed reflecting service on the other parties.

2. Counsel has failed to provide an English translation of the attorney retainer agreement. (Item 17; Attachment 17a.)

3. While

there is a declaration explaining the basis for the requested attorney's fees, the declaration is not signed. (Attachment 13a.)

Petitioner's

counsel is directed to address the aforementioned deficiencies by September 10, 2026. The Court sets a Non-Appearance Case Review for September 11, 2026 to track receipt of the supplemental materials and take the matter under submission.